Asgar Ansari vs State Of Nct Of Delhi on 25 April, 2023

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 915/2023
ASGAR ANSARI
Through: Mr. Vishal Raj Sehijpal
Mr.Anwar Ahmad Khan, Ad

versus

STATE OF NCT OF DELHI .
Through: Mr. Manoj Pant, APP for
with SI Amit Malik, Cyb

CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
ORDER

% 25.04.2023

1. The instant application under Section 439 of the Code of Criminal Procedure, 1973 („Cr.P.C.) has been filed on behalf of applicant seeking grant of regular bail in FIR bearing no. 29/2022, registered at Police Station Cyber Crime, North-East, Delhi for the offences punishable under Sections 419/420/120B/201 of the Indian Penal Code, 1860 („IPC).

2. The allegations against the present applicant are that the present accused/applicant is part of the syndicate of cyber criminals who had indulged in en-cashing the cheated amount online. He states that the present accused/applicant had opened his current bank account in the month of February, 2020 and has reflected that he was indulging in business of bookshop and stationery items, which later was found to be non-existing during investigation. Allegations against him are that he used the POS machine on the same bank account to siphoned off cheated amount, the ATM and debit cards of the bank accounts in which the cheated amount had been diverted to from victims had been swiped on the POS machine which belongs to the present accused applicant. He has thereafter, withdrawn the cheated amount from the bank account in case for which he had taken a commission of 10 per cent of the cheated amount and had given the remaining amount to the co-accused persons. During investigation, it was found that the bank account of the present accused applicant was credited with an amount of Rs. 72,91,385/- via the POS machine used by him between 01.07.2022 to 13.07.2022 and Rs. 7,73,003/- from 01.10.2022 to 07.10.2022. Therefore, the FIR be quashed.

3. Learned counsel for the applicant stated that all the co-accused have been granted bail. The present accused applicant is in judicial custody since 06.10.2022, the custodial interrogation of the present applicant is not required. Charges have already been framed, therefore, he be granted bail.

4. Learned APP for the State, on the other hand, states that the accused applicant has committed heinous crime of online frauds and is a part of larger conspiracy. He also states that the POS machine in his possession which was used for committing the fraud. He also states that one of the accused is absconding and therefore, bail be rejected.

5. I have heard arguments and have gone through the case file.

6. After going through the case file and the documents placed on record, this Court is of the opinion that in this case, all the co-accused persons have been granted bail who were also the part of the conspiracy. One accused is yet to be arrested, however, the present accused applicant is in judicial custody since 06.10.2022, charges against the present accused applicant stands framed and is no more required for custodial interrogation. The trial will take some time to conclude. Nothing remains to be recovered from the present accused applicant.

7. Keeping in view all the facts and circumstances mentioned hereinabove, this Court is inclined to grant regular bail to the applicant on his furnishing personal bond in the sum of Rs. 20,000/- with one surety of the like amount to the satisfaction of the concerned Court.

8. Accordingly, the bail application stands disposed of.

9. The order be uploaded on the website forthwith.

SWARANA KANTA SHARMA, J APRIL 25, 2023/zp Click here to check corrigendum, if any